

S^r Rich^{de} Champernoun comes, sayde the Counselle of S^r Henrye Baker : & that they proue by a visitacion by Commission by the heraldes, & by th'accounte & estimation of th'erle of Deuonshire.

'But the daye beinge spente it was deferred to Satterdaye Followinge, to be then hearde agayne. And then to the seconde satterdaye in the nexte hillarye terme.' ¹ Adjourned

In Camera Stellata, coram Consilio ibidem, Veneris, 18^o, et Mercurij, 18^o Nouembr. [1607]. adonque presente, Lo. Chauncellor, archeuesque de Canterberye, Lo. Tresorer, Count Northampton, Count Exeter, euesque de Londres, Lo. Zouche, ambideux Cheife Justices, S^r John Herberte et S^r Julius Cesar. [p. 323]
1607
Nov. 13, 18

'Pemlie, a minister in Kente, vpon an *ore tenus*, his owne Confessyon, for a libelle againste Bishops & the gouernemente of the Church, set vp vpon a poaste of an In gate in a markette towne in Kente, was Fyned 2000^{li}, to stande vpon the pillorye at westminster wth papers & there to lose one eare, & vpon the pillorye at Cheape-side & there to lose another eare, to be whipped at bothe places vnles he Confesse his faulte, & to be perpetuallye ymprysoned, but fyrste of all to be degraded from the ministrye before he receaue any Corporall punishement; w^{ch} he was the nexte thursedaye Followinge at Lambethe.' ² PEMLIE'S
CASE
—
Libel

Sentence

In Camera Stellata, coram Consilio ibidem, Veneris, 20 Nouembr. 1607.³ 1607
Nov. 20

'Cause of hearinge betwene Warren, plaintiff, et Steptney, defend^{te}, being highe sheriffe in wales, & for sellinge his hundredes or bailliwikes, & for holdinge his hundrede euerye twooe weekes contrarye to the lawe, for it oughte to be kepte from three weekes to three weekes; but of theise WARREN
v.
STEPNEY
—
Misde-
meanour as
Sheriff

¹ This case is not reported further in the MS. See Appendix XXI.

² See *post*, p. 343.

³ Eleven Councillors and Judges were present.

1607
Nov. 20

Adjourned

twooe the Judges woulde aduyse before they woulde delyuer there resolution, for it was a generall case & vsed by moste of the sheriffes of Englaunde; & so the cause was referred to another daye.¹

[p. 324]

LEWES
v.
LANY
and others
—
Taking
bribes, and
riot

Lord Coke
speaks in
favour of the
defendants

Judges must
not take fees

except in
some special
cases

Commis-
sioners may
take rewards
for their
trouble and
travelling
expenses, if
not done
corruptly

Acquittal

'Another Cause of hearinge, Lewes, pl., & Lany² & Goldsmithe of Graie's Inne, 2 Counsellors at the lawe, Fisher, an attornie at the Lawe, & others, defendauntes, for that they beinge Commissioners vpon the statute of Bankrupts had corruptelye taken rewardes & caryed them-selues vndulye in th'executinge of the Commission: vpon there aunsweares yt appeared that they had trauayled & bestowed many dayes & tooke greate paines to execute the Commission, & after all was ended Lany had 5^{li}, Goldsmithe 5^{li}, & Fisher 12^{li}, to beare there rydinge Charges, & for there paines: & before any proffe was reade, the Lo. Coke spake very muche in the Commendacion of Lany & Goldsmithe, & it were harde to nippe them thus in the budde; he neuer hearde nor knewe but they were honeste men, hopefull & lykelye to proue good members to there Cuntryes; & for generall Judges of the lande, they can take nothinge, eyther before or after, for they haue there Fee of the kinge; yet in speciall cases some Fees are allowed them by the parties, as in a specyall assise, or in errors in london; but Commissioners, put in truste & not sworne, yf they Contracte not or bargaine Corruptlye before hande for some greate rewarde or Fee, & so that be an occasyon to demeasne themselues partiallye or corruptelye or affectionatelye in execution of that truste, he was of opinion that by lawe they may well take rewarde for there trauelle & paines, & it was no offence; (yet he was sorrye they had taken anythinge). But all the Cowrte was Cleare of opinion that yt was no offence, but iustifiable by the

¹ See a cross bill between the same parties, *ante*, p. 335.

² John Lany, eld. son of John Lany, Lent Reader of Gray's Inn, was adm. there 1590-1; John L. the father was adm. 1567. The son is probably the one mentioned in the

text, as Coke speaks of Lany and Goldsmith as though they were young men. There were several Goldsmiths of Gray's Inn about this time, and it is impossible to identify the one here referred to.

Common & ciuill lawe; & the Lo. Chauncellor sayde he was sorrye they tooke no more, (for wth a Lawyer *Cessans lucrum damnum est*), & yf Commissioners showlde not haue rewarde for there trauell & Charges, no Commissions woulde be executed. So they were acyuted by the sentence of all the Cowrte, wth very greate Commendation, especialye of Lanie, vpon knowledge of many of y^e lordes.

‘But some other defendantes, for a riot in goinge wth gunnes & other weapons vpon the sabaothe daye in the time of deuine seruice (w^{ch} none can doe) to execute a warraunte of the Commissioners for the takinge the bodye of the Bankroupte, Lewes, for this riote they were Fyned, th’one a 100^{li}, th’other 100 markes, the thirde 100 nobles, & imprisonm^{ts} as of Course. The Lo. Chauncellor woulde haue yt entred in the order wth some touche of delyueringe theise [Lany and Goldsmith] wth Credyte & note of greate Commendacion by so manye honorable personages, & that they showlde haue good Costes, & the pl. to acknowledge his Faulte vnto them.’

[p. 325]
The Riot

Sentence

In Camera Stellata, coram Consilio ibidem, Veneris, 27 Nouembr. 1607.¹

1607
Nov. 27

‘This daye Pemlye (beinge degraded by the archebishop) was accordinge to the former sentence, 18 Nouembr., put to his punishement, firste he had 25 ierkes,² & then stode in the pillorye, & had papers, & one of his eares Cutte cloase from his heade, & after that he had 25 ierkes more.’³

Pemlye's
case

‘This daye also a Cause was hearde betwene Thomas Edwardes, a phisitian of Exeter, pl., & Doctor Wootton, a phisitian, Norris’ wyfe, an apothecarye, one other phisitian, & an apothecarye, defend^{tes}. Th’offence was a lybelle made by Doctor wootton, & by him & the reste published in the manner ensewinge. Edwardes & Doctor Wootton fallinge oute & vsinge bitter tearmes, Doctor

EDWARDES
v.
WOOTTON
and others
—
Libel

¹ Ten Councillors and Judges were present. was that he was to be whipped. Jerk, to beat: Halliwell.

² Apparently lashes; his sentence

³ See ante, p. 341.

1607
Nov. 27

[p. 326]

Interroga-
tories 4
yards long

Libel or not

[p. 327]

wootton wrytes a letter & begins "Mr Docturdo & fartado," &c., more then 2 sides of paper full of vilde matter, ribaldrie & defamacyon, & enclosethe yt as a letter, & subscribes it, & sendes yt to Mr Edwardes, & keepes a Copie thereof, & afterwards publyshethe the same, & delyuers Copies to dyuerse whoe lykewyse reade & publishe the same to dyuerse, & saye that Doctor Edwardes will forweare them & beare them out in yt, howsoeuer or whatsoeuer yt coste him. This was greatelye to the defaming & damnyfinge of the pl., Edwardes, being broughte vp as an Apothecarie & allowed a phisitian by the College of Phisitions in london vpon examynation had, & otherwyse reputed a very honeste & discreete man: The Defendaunte Doctor wooton pretended that the pl. himselfe had firste published this lybelle, but made no proffe of it, & had mynistred 80 Interrogatories, 4 yardes of parchemente by the measure of the Lo. Chauncellor, againste the pl., thereby examyninge all the principall men of those Countreyes touchinge the honestye, Credite, reputation & Caryage of the pl. (a very daungerous presydenste & not to be suffred, for the pl. Can haue no knowledge thereof before publication); yet they all did generally wth one Consente aprooue the sufficiencye, honestye & good Course & Caryage of the sayd Compl., & no one wytnesse accused or touched him wth any blemishe in any kinde.

' The question was whether this was a lybelle or no, & resolved by the Judges & all the Courte that yt was a lybelle: for yf a man will wryte a pryuate letter defamatorye & not otherwyse publishe yt eyther before or after the wrytinge, he shall not haue an action of the case; but forasmuche as the same dothe prouoke malice & breache of the peace & reuenge, yt shalbe punished in this Cowrte & nippe it *dum seges in herba*; for being a letter onelye kepte cloase yt gyuethe no cause of accion because he hathe no dammages. & this beinge an offence that dothe prouoke reuenge, bringe daunger to the state & common weale, *et interest reipublicae*, & therefore an offence in this Cowrte to be seuerelye punished.